

1 ENGROSSED SENATE
2 BILL NO. 1481

By: Seifried of the Senate

3 and

4 Caldwell (Chad) of the
5 House

6 An Act relating to schools; amending 70 O.S. 2021,
7 Section 11-103.9, which relates to physical education
8 program requirements; requiring certain schools to
9 provide students in certain grades certain amount of
10 recess per day as a condition of accreditation;
11 allowing recess to be divided into two periods;
12 requiring recess to consist of certain play;
13 prohibiting removal of recess as a form of
14 discipline; removing language encouraging certain
15 amount of recess in certain grades; updating
16 statutory language; providing an effective date; and
17 declaring an emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 70 O.S. 2021, Section 11-103.9, is
20 amended to read as follows:

21 Section 11-103.9. A. Except as otherwise provided for in this
22 section, the State Board of Education shall require, as a condition
23 of accreditation, that school districts provide to all students
24 physical education programs which may include athletics.

B. The Board shall require, as a condition of accreditation,
that public elementary schools provide instruction, for students in
full-day kindergarten and grades one through five, in physical
education or exercise programs for a minimum of an average of sixty

1 (60) minutes each week. The time students participate in recess
2 shall not be counted toward the sixty-minutes-per-week physical
3 education requirement. Schools may exclude from participation in
4 the physical education or exercise programs required in this
5 subsection those students who have been placed into an ~~in-house~~ in-
6 school suspension or detention class or placement or those students
7 who are under an in-school restriction or are subject to an
8 administrative disciplinary action.

9 C. The Board shall require, as a condition of accreditation,
10 that public elementary schools provide to students in full-day
11 kindergarten and grades one through five, in addition to the
12 requirements set forth in subsection B of this section, an average
13 of sixty (60) minutes each week of physical activity, which may
14 include, but not be limited to, physical education, exercise
15 programs, fitness breaks, ~~recess,~~ and classroom activities, and
16 wellness and nutrition education. Each school district board of
17 education shall determine the specific activities and means of
18 compliance with the provisions of this subsection, giving
19 consideration to the recommendations of each school's Healthy and
20 Fit School Advisory Committee as submitted to the school principal
21 pursuant to the provisions of Section 24-100a of this title.

22 D. The Board shall require, as a condition of accreditation,
23 that public elementary schools provide to students in full-day
24 kindergarten and grades one through five, in addition to the

1 requirements of subsections B and C of this section, forty (40)
2 minutes of recess per school day, which may be divided into two
3 recess periods of twenty (20) minutes each. Recess shall consist of
4 supervised, unstructured time for play. No student shall be
5 prohibited from participating in recess as a form of discipline.

6 E. The Board shall disseminate information to each school
7 district on the benefits of physical education programs and shall
8 strongly encourage districts to provide physical education
9 instruction to students in grades six through twelve. The Board
10 shall also strongly encourage school districts to incorporate
11 physical activity into the school day by providing ~~to students in~~
12 ~~full-day kindergarten and grades one through five at least a twenty-~~
13 ~~minute daily recess, which shall be in addition to the sixty (60)~~
14 ~~minutes of physical education as required by subsection B of this~~
15 ~~section, and by allowing~~ all students brief physical activity breaks
16 throughout the day, physical activity clubs, and special events.

17 ~~E.~~ F. Instruction in physical education required ~~in~~ by this
18 section shall be aligned with the subject matter standards as
19 adopted by the Board.

20 ~~F.~~ G. The physical education curriculum shall be sequential,
21 developmentally appropriate, and designed, implemented, and
22 evaluated to enable students to develop the motor and self-
23 management skills and knowledge necessary to participate in physical
24 activity throughout life. Each school district shall establish

specific objectives and goals the district intends to accomplish through the physical education curriculum.

~~G.~~ H. In identifying the essential knowledge and skills, the State Board of Education shall ensure that the subject matter standards for physical education:

1. Emphasize the knowledge and skills capable of being used during a lifetime of regular physical activity;

2. Are consistent with national physical education standards for:

- a. the information that students should learn about physical activity, and

- b. the physical activities that students should be able to perform;

3. Require that, on a weekly basis, at least fifty percent (50%) of the physical education class be used for actual student physical activity and that the activity be, to the extent practicable, at a moderate or vigorous level;

4. Offer students an opportunity to choose among many types of physical activity in which to participate;

5. Offer students both cooperative and competitive games;

6. Meet the needs of students of all physical ability levels, including students who have a disability, chronic health problem, or other special need that precludes the student from participating in regular physical education instruction but who might be able to

1 participate in physical education that is suitably adapted and, if
2 applicable, included in the student's individualized education
3 program;

4 7. Teach self-management and movement skills;

5 8. Teach cooperation, fair play, and responsible participation
6 in physical activity;

7 9. Promote student participation in physical activity outside
8 of school; and

9 10. Allow physical education classes to be an enjoyable
10 experience for students.

11 ~~H. I.~~ I. The Board shall ~~adopt~~ promulgate rules to implement the
12 provisions of this section.

13 SECTION 2. This act shall become effective July 1, 2026.

14 SECTION 3. It being immediately necessary for the preservation
15 of the public peace, health, or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

1 Passed the Senate the 17th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives